

SOLICITATION, OFFER, AND AWARD (Construction, Alteration, or Repair)		1. SOLICITATION NO. 140A1126Q0032	2. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☐ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	3. DATE ISSUED 05/04/2026	PAGE 1	OF 10	PAGES
IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.							
4. CONTRACT NO.			5. REQUISITION/PURCHASE REQUEST NO. 0044041840		6. PROJECT NO.		
7. ISSUED BY BIA WRO 00011 2600 N CENTRAL AVENUE Contracting Office SUITE 400 MAILROOM Phoenix AZ 85004		CODE A11	8. ADDRESS OFFER TO Bureau of Indian Affairs - Western Region Department of Acquisitions 2600 N Central Ave Phoenix, AZ 85004				
9. FOR INFORMATION CALL		a. NAME Melanie Schiaveto		b. TELEPHONE NO. (Include area code) (NO COLLECT CALLS) 4807444870			

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS (Title, identifying number, date)

This information is provided for the following project: Installation of Fire-Rated Drop Ceiling System

1. Proposal Acceptance Period/Date: The proposal acceptance period shall extend sixty (60) days past the closing date.

2. RFQ Deadline: May 26, 2026 at 5:00 P.M. Pacific Standard/Daylight Time (PST, PDT).

3. Questions and Answers: Any questions relating to this solicitation shall be submitted to the following individuals: Contract Specialist (CS) and Contracting Officer (CO) no later than May 22, 2026.

4. On-site Access: A list of personnel, with all pertinent information shall be submitted to the CS and CO. Site Visits shall be scheduled at the Government's discretion.

5. Period of Performance: Ninety (90) Calendar Days.

Continued...

11. The contractor shall begin performance within <u>10</u> calendar days and complete it within <u>90</u> calendar days after receiving ☒ award, ☐ notice to proceed. This performance period is ☒ mandatory ☐ negotiable. (See _____).	
12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? (If "YES", indicate within how many calendar days after award in Item 12b.) ☐ YES ☒ NO	12b. CALENDAR DAYS 0

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and _____ copies to perform the work required are due at the place specified in Item 8 by 1700 (hour) local time 05/26/2026 (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☐ is, ☒ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 60 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)	15. TELEPHONE NO. (Include area code)
16. REMITTANCE ADDRESS (Include only if different than Item 14.)	
CODE	FACILITY CODE

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER									
DATE.									

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	20b. SIGNATURE	20c. OFFER DATE
--	----------------	-----------------

AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

Continued...

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA
24. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT ☐ 10 U.S.C. 3204(a) () ☐ 41 U.S.C. 3304(a) ()
26. ADMINISTERED BY A11 DOI, BIA WRO Contracting Office 2600 N CENTRAL AVENUE SUITE 400 MAILROOM Phoenix AZ 85004	27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return <u>0</u> copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.	☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.
30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)	31a. NAME OF CONTRACTING OFFICER (Type or print) Melanie Schiaveto
30b. SIGNATURE	31b. UNITED STATES OF AMERICA BY
30c. DATE	31c. DATE

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
	140A1126Q0032	PAGE 3 OF 10
NAME OF OFFEROR OR CONTRACTOR		

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	6. Special attention is called to FAR Clause 52.236-7, Permits and Responsibilities and FAR Clause 52.229-3, Federal, State, and Local Taxes. Offerors are responsible for contacting the tax authorities and tribe or tribal organization involved with regard to any requirements regarding state taxes, tribal taxes, royalties and/or other applicable tribal laws or ordinances. Any costs associated with this section shall be included in the contractor's firm fixed price proposal. Contractor is responsible for contacting the appropriate TERO office for coordination and approvals. Please refer to Section H and the applicable clauses for additional information about these requirements. 7. Place of Performance: Duck Valley Juvenile Detention Center located at 488 Transfer Road in Owyhee, Nevada, Elko County. 8. Points of Contact: Contract Specialist: Melanie Schiaveto, melanie.schiaveto@bia.gov; Contracting Officer: Renee Holly, renee.holly@bia.gov Delivery: 90 Days After Award Delivery Location Code: 0011284570 BIA EASTERN NV ADMIN 2719-4 ARGENT AVENUE ELKO NV 89801 US				
00010	Install Fire-Rated Suspended Acoustic Ceiling System Product/Service Code: Z2FF Product/Service Description: REPAIR OR ALTERATION OF PENAL FACILITIES				

SECTION B – CONTRACT SCHEDULE

Propose your best prices projects in accordance with the attached Statement of Work (SOW). Price proposals should be submitted following the price schedule/format below.

In accordance with FAR 52.212-4(k) Taxes, the contract price includes all applicable Federal, State, and local taxes and duties.

CLIN	DESCRIPTION	UNIT	UNIT PRICE	TOTAL PRICE
0001	Installation of Fire-Rated Drop Ceiling System	1 Job	\$	\$
Subtotal				\$
TERO (if applicable)				\$
Total				\$

CONTRACT TYPE

The Department of the Interior (DOI), Bureau of Indian Affairs (BIA), Division of Acquisitions anticipates awarding a single Firm Fixed Priced type purchase order as a result of this opportunity.

52.246-12 Inspection of Construction. (AUG 1996)

(a) *Definition.* Work includes, but is not limited to, materials, workmanship, and manufacture and fabrication of components.

(b) The Contractor shall maintain an adequate inspection system and perform such inspections as will ensure that the work performed under the contract conforms to contract requirements. The Contractor shall maintain complete inspection records and make them available to the Government. All work shall be conducted under the general direction of the Contracting Officer and is subject to Government inspection and test at all places and at all reasonable times before acceptance to ensure strict compliance with the terms of the contract.

(c) Government inspections and tests are for the sole benefit of the Government and do not -

(1) Relieve the Contractor of responsibility for providing adequate quality control measures;

(2) Relieve the Contractor of responsibility for damage to or loss of the material before acceptance;

(3) Constitute or imply acceptance; or

(4) Affect the continuing rights of the Government after acceptance of the completed work under paragraph (i) below.

(d) The presence or absence of a Government inspector does not relieve the Contractor from any contract requirement, nor is the inspector authorized to change any term or condition of the specification without the Contracting Officer's written authorization.

(e) The Contractor shall promptly furnish, at no increase in contract price, all facilities, labor, and material reasonably needed for performing such safe and convenient inspections and tests as may be required by the Contracting Officer. The Government may charge to the Contractor any additional cost of inspection or test when work is not ready at the time specified by the Contractor for inspection or test, or when prior rejection makes reinspection or retest necessary. The Government shall perform all inspections and tests in a manner that will not unnecessarily delay the work. Special, full size, and performance tests shall be performed as described in the contract.

(f) The Contractor shall, without charge, replace or correct work found by the Government not to conform to contract requirements, unless in the public interest the Government consents to accept the work with an appropriate adjustment in contract price. The Contractor shall promptly segregate and remove rejected material from the premises.

(g) If the Contractor does not promptly replace or correct rejected work, the Government may (1) by contract or otherwise, replace or correct the work and charge the cost to the Contractor or (2) terminate for default the Contractor's right to proceed.

(h) If, before acceptance of the entire work, the Government decides to examine already completed work by removing it or tearing it out, the Contractor, on request, shall promptly furnish all necessary facilities, labor, and material. If the work is found to be defective or nonconforming in any material respect due to the fault of the Contractor or its subcontractors, the Contractor shall defray the expenses of the examination and of satisfactory reconstruction. However, if the work is found to meet contract requirements, the Contracting Officer shall make an equitable adjustment for the additional services involved in the examination and reconstruction, including, if completion of the work was thereby delayed, an extension of time.

(i) Unless otherwise specified in the contract, the Government shall accept, as promptly as practicable after completion and inspection, all work required by the contract or that portion of the work the Contracting Officer determines can be accepted separately. Acceptance shall be final and conclusive except for latent defects, fraud, gross mistakes amounting to fraud, or the Government's rights under any warranty or guarantee.

(End of clause)

SECTION C - CLAUSES

SPECIAL NOTICE

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations, including 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation, and paragraph (t) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Agencies will not consider or use these representations. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

CLAUSES INCORPORATED BY REFERENCE

FAR 52.252-2 Clauses Incorporated by Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this address:

<https://www.acquisition.gov>

The below clauses are incorporated by reference:

Clause	Title	Date
52.204-13	System for Award Management Maintenance	Oct 2018
52.204-18	Commercial and Government Entity Code Maintenance	Aug 2020
52.204-19	Incorporation by Reference of Representations and Certifications	Dec 2014
52.213-4	Terms and Conditions- Simplified Acquisitions (Other Than Commercial Products and Commercial Services)	Mar 2026
52.225-9	Buy American-Construction Materials	Oct 2022
52.222-6	Construction Wage Rate Requirements	Aug 2018
52.226-1	Utilization of Indian Organizations and Indian-Owned Economic Enterprises	Jun 2000

Clause	Title	Date
1452.280-2	Notice of Indian Economic Enterprise Set-aside	Feb 2021
1452.280-3	Indian Economic Enterprise subcontracting limitations	Feb 2021

CLAUSES INCORPORATED BY FULL TEXT:

1452.280-1 Notice of Indian Small Business Economic Enterprise Set-Aside (FEB 2021)

Under the Buy Indian Act, 25 U.S.C. 47, offers are solicited only from Indian Economic Enterprises (Subpart 1480.8) that are also small business concerns. Any acquisition resulting from this solicitation will be from such a concern. Offers received from enterprises that are not both Indian Economic Enterprises and small business concerns will not be considered and will be rejected

(End of clause)

FAR 52.228-13 Alternative Payment Protections (JULY 2000)

(a) The Contractor shall submit one of the following payment protections:

(i) A payment bond.

(ii) An irrevocable letter of credit (ILC).

(iii) *A tripartite escrow agreement.* The prime contractor establishes an escrow account in a federally insured financial institution and enters into a tripartite escrow agreement with the financial institution, as escrow agent, and all of the suppliers of labor and material. The escrow agreement shall establish the terms of payment under the contract and of resolution of disputes among the parties. The Government makes payments to the contractor's escrow account, and the escrow agent distributes the payments in accordance with the agreement or triggers the disputes resolution procedures if required.

(iv) *Certificates of deposit.* The contractor deposits certificates of deposit from a federally insured financial institution with the contracting officer, in an acceptable form, executable by the contracting officer.

(v) A deposit of the types of security listed in 28.204-1 and 28.204-2.

(b) The amount of the payment protection shall be 100 percent of the contract price.

(c) The submission of the payment protection is required within **10 days** of contract award.

(d) The payment protection shall provide protection for the full contract performance period plus a one-year period.

(e) Except for escrow agreements and payment bonds, which provide their own protection procedures, the Contracting Officer is authorized to access funds under the payment protection when it has been alleged in writing by a supplier of labor or material that a nonpayment has occurred, and to withhold such funds pending resolution by administrative or judicial proceedings or mutual agreement of the parties.

(f) When a tripartite escrow agreement is used, the Contractor shall utilize only suppliers of labor and material that signed the escrow agreement.

(End of clause)

INDIAN AFFAIRS CLAUSES:

**Electronic Invoicing and Payment Requirements - Invoice Processing Platform (IPP)
(February 2021)**

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

Invoice Contents:

- Invoices will be paid upon approval and acceptance by the BIA Contracting Officers Representative (COR). IPP electronic invoices must have a hardcopy invoice with any supporting backup documentation attached. Invoices must include, as a minimum, the following information:
 1. Order Number
 2. Description of deliverable
 3. Price of deliverable
 5. Date deliverable was provided to the Government
- The contractor is responsible for ensuring invoices submitted are accurate, complete and match the line items, amounts, rates etc. listed on the award.
- Additional supporting documentation MAY BE REQUESTED at the discretion of the BIA Technical POC.

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its quotation.

(End of clause)

SECTION D: ATTACHMENTS

Attachment 1: Statement of Work

Attachment 2: Wage Determination #NV202550035 dated 1-02-2026

Attachment 3: Indian Affairs Indian Economic Enterprise Representation Form

SECTION E: REPRESENTATIONS AND INSTRUCTIONS

52.204-7	System for Award Management	Nov 2024
52.222-10	Notice of Buy American Requirement- Construction Materials	May 2014

All Vendors furnishing a quotation must include a completed Indian Affairs Indian Economic Enterprise Representation Form.

Consistent with FAR 13.106-2(a)(2)(i), offers are notified that award will be made on the basis of price.

52.212-2 -- Evaluation -- Commercial Items (Nov 2021)

Addenda – Evaluation - Lowest Price Technically Acceptable (LPTA)

(a) The Government will award a firm fixed price purchase order (PO) resulting from this solicitation to the responsible quoter whose quote conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate quotes:

(i). Technical Capabilities. The contractor will be evaluated based upon the capabilities of the contractor as they relate to this requirement, as well as their experience level to projects similar in size and scope to this requirement. The contractor will also be evaluated based upon their understanding of this project.

(ii) Delivery and Availability. The delivery/lead-time will be considered in the evaluation of quotes, as technical capabilities and price.

(iii). Price. Price will be evaluated for price reasonableness. All evaluation factors other than cost or price, when combined, are approximately equal to cost or price.

Best Value-Trade Offs: The Government reserves the right to make an award to other than the low priced quoter if another superior technical submission, or a submission indicating a reduced performance risk, warrants paying a premium. As non-price factors are evaluated closer to one another between quotes, price will become more significant. Furthermore, the Government reserves the right to award no order at all, depending on the quality of the quotes, the availability of funding and the continued existence of the requirement.

(b) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)